

25STCV93155 25STCV93155

County: los-angeles
Division: Civil Law and Motion
Department: 506
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Case Number: 25STCV93155 Hearing Date: July 21, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

JOSE PAZ,

Plaintiff,

vs.

PUBLIC STORAGE, ET AL.

Defendant.

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CASE NO.: 25STCV03155

[TENTATIVE] ORDER

GRANTING DEFENDANT PUBLIC STORAGE'S
MOTION FOR SANCTIONS

Dept. 506

8:30 a.m.

JULY 21, 2026

On February 5, 2025,
Plaintiff Jose Paz filed a complaint against Defendants Public Storage, Storage
Equities, Inc. and DOE 1 (Manager) alleging (1) general negligence and (2)
premises liability. Plaintiff slipped
and fell on water and/or an unknown substance at the premises of Defendant
Public Storage.

On
June 22, 2026, Defendant Public Storage Operating Company filed the instant
Motion for Sanctions. On July 8, 2026,
Plaintiff Jose Paz filed an opposition.
On July 14, 2026, Defendant filed a reply.

Trial
is set for August 10, 2026.

I. Legal Standard

“To the extent authorized by the chapter governing any particular discovery method or any other provision of this title, the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process:...(b) The court may impose an issue sanction ordering that designated facts shall be taken as established in the action in accordance with the claim of the party adversely affected by the misuse of the discovery process. The court may also impose an issue sanction by an order prohibiting any party engaging in the misuse of the discovery process from supporting or opposing designated claims or defenses. (c) The court may impose an evidence sanction by an order prohibiting any party engaging in the misuse of the discovery process from introducing designated matters in evidence....” (Code of Civ. Proc., §2023.030, subd. (b) and (c).)

Discovery

sanctions are not intended to punish but to accomplish discovery. (Newland v. Supr. Ct. (1995) 40 Cal.App.4th 608, 613) Discovery

sanctions are not intended to punish but to accomplish discovery. (Id. at 613.) CCP §2023.010 does not require that any heightened showing be made in connection with a request for terminating sanctions. The Court is also not required to make any findings or detail with particularity the basis for its decision to impose sanctions. (Ghanooni v. Super Shuttle (1993) 20 Cal.App.4th 256, 261.)

“Spoliation

of evidence means the destruction or significant alteration of evidence or the failure to preserve evidence for another's use in pending or future litigation. Such conduct is condemned because it can destroy fairness and justice, for it increases the risk of an erroneous decision on the merits of the underlying cause of action. Destroying evidence can also increase the costs of litigation as parties attempt to reconstruct the destroyed evidence or to develop other evidence, which may be less accessible, less persuasive, or both.

While there is no tort cause of action for the intentional destruction of evidence after litigation has commenced, it is a misuse of the discovery process that is subject to a broad range of punishment, including monetary, issue, evidentiary, and terminating sanctions.

A terminating sanction is appropriate in the first instance without a violation of prior court orders in egregious cases of intentional spoliation of

evidence.” (Williams v. Russ (2008) 167 Cal.App.4th 1215, 1223.) A party “moving for discovery sanctions based on the spoliation of evidence must make an initial prima facie showing that the responding party in fact destroyed evidence that had a substantial probability of damaging the moving party’s ability to establish an essential element of his claim or defense.” (Id. at 1227.)

II. Defendant

Public Storage is Entitled to Issue Sanctions

Plaintiff

intentionally destroyed or abandoned the shoes he was wearing during the accident in April 2024. (Morgan Dec., Ex. E, 36:21-37:9.) Plaintiff did so because he was moving and could not take everything with him because he did not have enough room. (Id. at 37:4-6.) Plaintiff retained counsel within two to three weeks after the incident, which occurred on March 14, 2023. (Id. at 118:25-119:7.)

Based

on these facts, Plaintiff intentionally destroyed or spoliated evidence, although not in bad faith. Plaintiff argues this does not qualify as discovery abuse warranting sanctions because it was “unintentional.” However, Plaintiff’s destruction or abandonment of his shoes was intentional, although there is no evidence that he did it in bad faith or in order to damage Defendant’s case. The applicable standard does not require bad faith. “Spoliation of evidence means the destruction or significant alteration of evidence or the failure to preserve evidence for another’s use in pending or future litigation.” (William, supra, 167 Cal.App.4th at 1223.) In “egregious” cases of spoliation, which would include cases of bad faith, terminating sanctions may be imposed in the first instance without prior discovery abuses. (Id.)

Defendant

only asks for imposition of issue or evidentiary sanctions. Defendant need only “make an initial prima facie showing” that Plaintiff’s destruction of the shoes he was wearing on the day of the accident had “a substantial probability of damaging the moving party’s ability to establish an essential element of his claim or defense.” (Id. at 1227.) Defendant is therefore not required to

establish that Plaintiff's shoes would have necessarily established comparative fault or negligence. Defendant need only establish that loss of the shoes damaged its "ability to establish an element" of comparative fault.

Defendant

makes a prima facie case that loss of the shoes damages its ability to demonstrate that Plaintiff's comparative fault for the accident. The footwear a plaintiff is wearing when he or she slips and falls can be the basis for finding comparative fault. (Scott v. Alpha Beta Co. (1980) 104 Cal.App.3d 305, 310 (plaintiff's choice to wear pink furry house slippers at time of fall was reasonable basis for jury to conclude that plaintiff was comparatively at fault for the accident).)

Plaintiff's destruction of his shoes deprived the Defendant of the ability to physically examine the condition of the shoes and formulate a defense based on comparative fault.

Plaintiff's deposition testimony is insufficient to cure Defendant's inability of Defendant to examine the physical shoes Plaintiff wore during the incident.

Defendant

requests the following sanctions:

1. issue sanctions

establishing that the condition of Plaintiff's footwear, including its tread, wear, contamination and slip resistance, was a substantial factor in causing the incident and precluding Plaintiff from disputing those issues; and additionally or in the alternative;

2. evidentiary sanctions

precluding Plaintiff from offering any evidence, testimony, or argument concerning the condition, design, traction, tread or slip resistance of the footwear worn at the time of the incident, and permitting Defendant to present evidence and argument regarding spoliation and to request an adverse inference at trial that the lost footwear would have been unfavorable to Plaintiff's claims.

The

Court grants Defendant's request for an evidentiary sanction precluding Plaintiff from offering evidence, testimony, or argument concerning the condition, design, traction, tread or slip resistance of the footwear worn at the time of the incident, and permitting Defendant to present evidence and

argument regarding spoliation and to request an adverse inference at trial that the lost footwear would have been unfavorable to Plaintiff's claim. The request for issue sanctions is denied as moot.

Accordingly, the motion for evidentiary sanctions is GRANTED.

Moving
party to give notice.

Parties
who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 21st day of July 2026

Hon. Thomas D.
Long

Judge of the Superior
Court